

18PR00015 Conservatorship of Harry Leonard Keiffer

County: santa-barbara

Division: Conservatorship

Department: 3 SM-Cook

Hearing date: 2023-10-25

Motion: Petition for Attorney's Fees

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Tentative Ruling: Conservatorship of Harry Leonard Keiffer

Case Number

18PR00015

Case Type

Conservatorship

Hearing Date / Time

Wed, 10/25/2023 - 08:30

Nature of Proceedings

Petition for Attorney's Fees

Tentative Ruling

Probate Notes:

Appearances required. The following is noted for the Court:

Attorney's fees must be reviewed for reasonableness. (Prob. Code, §2640(c).)

Generally, an appropriate fee petition will contain a summary of the total hours, the proposed hourly rate, and the amount of compensation sought. The petition must be accompanied by a detailed description of each service, the date, duration, rate, and total charges. Cal Rules of Ct 7.702, 7.751(b). If compensation is requested for legal services performed by a paralegal, the petition must state that such services were performed under the direction and supervision of an attorney and must set forth the hours spent and services performed by the paralegal. (Prob. Code, § 2640(c).)

In determining the appropriateness of the charge, the court must consider the best interest of the conservatee, not the interest of beneficiaries of the estate, in awarding compensation to the conservator and the conservator's attorney. Cal Rules of Ct 7.702, 7.751(b).

In this case, the billing statement submitted by conservatee's attorney contains cursory descriptions of work performed that do not provide enough information for the Court to rely upon in order to make a determination that the work performed was necessary, or the fee charged was reasonable.

Thus, the Court has two options:

OPTION 1: Decrease the fee award to \$6,036.583 (roughly 30%) for all billing entries that are arguably unreasonable due to the lack of detail in the description of the work performed.

OPTION 2: Order petitioner to resubmit her billing statement with descriptions of the work performed that are detailed enough to determine whether the work performed was necessary, and whether the fee charged was reasonable.

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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